

Vendor Agreement II

Detailed Line-by-Line Explanation

1. Confidential Information

- **Clause 1:** Company ki koi bhi aisi jankari jo aam janta (public) ko nahi pata, woh "Confidential" maani jayegi. Isme designs, drawings, patterns, prices, business plans, software aur customer/artisan (kaarigar) ki details shamil hain. Zaroori nahi ki us paper par 'Confidential' likha ho, uska nature hi kaafi hai usay secret maanne ke liye.

2. Exclusions

- **Clause 2:** Vendor par secrecy ka rule wahan laagu nahi hoga jahan: jankari pehle se public mein ho, kisi third-party ne kanooni taur par batayi ho, ya Vendor ne Company ka data use kiye bina usay khud akele banaya (develop) ho.

3. Vendor's Obligations

- **Clause 3:** Vendor ko yeh jankari sirf aur sirf kaam (Purpose) ke liye use karni hai. Isey sirf unhi workers ya advisors ko batana hai jinki sach mein zaroorat hai, aur unse bhi secrecy rules follow karwane hain. Vendor in designs ya products ki photo khinch kar apne portfolio, social media ya website par bina permission nahi daal sakta. Samaan ko reverse engineer (khol kar design churaana) karna bhi mana hai.

4. Required or Protected Disclosures

- **Clause 4:** Agar kanoon ya kisi Court ka order aata hai, toh Vendor data de sakta hai. Lekin, data dene se pehle Vendor ko turant Company ko written notice dena hoga taaki Company court se bachaav (protection) le sake.

5. Security Incident

- **Clause 5:** Agar Company ka data leak ho jata hai, hack ho jata hai, ya koi unauthorized aadmi usay dekh leta hai, toh Vendor ko 24 ghante ke andar Company ko inform karna padega aur usay theek karne mein madad karni hogi.

6. Company Materials

- **Clause 6:** Company ka saara data aur designs sirf Company ki property rahenge. Jo naya kaam ("Vendor Work Product") PO mein specifically Company ke liye banaya gaya hai, uspe 100% haq Company ka hoga. Lekin ek fayda yeh hai ki Vendor ki apni purani technology ya designs (pre-existing materials) par Vendor ka hi haq rahega.

7. Use of Company Name and Marks

- **Clause 7:** Vendor apne kisi bhi ad, promotion, ya client list mein Company ka naam ya logo (trade marks) bina written approval ke use nahi kar sakta.

8. Return and Deletion

- **Clause 8:** Jab kaam khatam ho jaye ya Company maange, toh Vendor ko unka saara data wapas karna hoga aur apne computers se permanently delete karke certificate dena hoga. Sirf wahi data rakha ja sakta hai jo kanoon ke hisaab se zaroori ho ya computer ke inaccessible backup mein chala gaya ho.

9. Duration

- **Clause 9:** Yeh agreement 3 saal ke liye hai, aur koi bhi party 30 din ka written notice dekar isey beech mein khatam kar sakti hai. Lekin, data secret rakhne ka rule contract khatam hone ke 5 saal baad tak chalega. Trade secrets aur personal data par toh yeh rule hamesha (indefinitely) laagu rahega.

10. No Restraint of Trade

- **Clause 10:** Yeh clause Vendor ke liye bohot acha hai. Yeh clearly bolta hai ki is NDA ki wajah se Vendor ka apna kaam nahi rukega. Vendor azaad hai kisi bhi aur client ke sath kaam karne ke liye, jab tak ki woh Company ka data leak na kare. Is NDA mein logo ko chheen'ne (non-compete/non-solicitation) par koi rok nahi lagayi gayi hai. *(Note: Pichle 12-page wale main agreement mein yeh rok thi, usko wahan negotiate karna zaroori hai).*

11. Remedies

- **Clause 11:** Agar Vendor data leak karta hai, toh nuksaan ka paisa (damages) dena hi kaafi nahi hoga; Company court jaakar turant kaam rokne ka order (injunction) bhi laa sakti hai.

12. No Warranty; No Obligation; Relationship

- **Clause 12:** Yeh sirf ek NDA (raaz rakhne ka contract) hai, iska matlab yeh nahi ki Company order dene ke liye majboor hai. Dono parties independent contractors hain, inke beech koi partnership ya employee wala rishta nahi banega.

13. Dispute Resolution and Governing Law

- **Clause 13:** Jhagda hone par pehle dono aapas mein 15 din tak suljhane ki koshish karenge. Agar baat nahi banti, toh aapas ki sehmati se ek independent arbitrator (judge) chuna jayega. Case Delhi (India) mein chalega aur kanoon India ka laagu hoga.

14. Notices

- **Clause 14:** Koi bhi kanooni notice hath se, courier se, ya email se bheja ja sakta hai. Notice aane ke liye specifically yeh do email IDs fix kiye gaye hain: accounts@viyadesign.com (Company) aur adhyaashaktienterprises2026@gmail.com (Vendor). Badi galti ke notices email ke sath-sath courier se bhi bhejne zaroori hain.

15. General

- **Clause 15:** Agar kal ko main Supply Agreement (pichla 12 page wala) mein secrecy ko lekar isse bhi zyada strict rules nikle, toh kanoon ki nazar mein woh strict rules hi maane jayenge. Vendor apni marzi se yeh contract kisi aur ko aage transfer (assign) nahi kar sakta bina Company se puche.

Summary for the Vendor:

Yeh NDA industry ke normal standard ke hisaab se hi bana hai. Isme sabse achi baat Clause 10 hai, jo Vendor ko azaadi deta hai ki woh dusre clients ke sath normal business kar sakte hain bina rukawat ke. Is document mein MSME vendor ke liye aisi koi 20 lakh wali bhari penalty nahi hai jaisa pichle main agreement mein thi.

SUGESTIONS FOR VENDER

1. The Biggest Trap: Clause 10 vs Clause 15 (Contradiction)

- **Current Situation:** Is NDA ka **Clause 10** kehta hai ki Vendor par koi "non-solicitation" ya "non-compete" ka restriction nahi lagega (yani woh dusre clients ke sath azaadi se kaam kar sakte hain). Lekin **Clause 15** yeh kehta hai ki agar kisi dusre agreement (jaise pichla 12-page wala Vendor Agreement) mein Company ko zyada protection di gayi hai, toh wahi strict rule maana jayega.
- **Updation Needed:** Vendor ko Company se clearly bolna chahiye ki pichle main agreement mein 24 mahine ka strict non-solicitation rule (Clause 16) likha hai. Agar is NDA mein azaadi di ja rahi hai, toh main agreement se woh 24 mahine wala rule hataya jaye taaki dono agreements aapas mein match karein. Warnah Clause 15 ke chalte Vendor us 24 mahine wale rule mein phans jayega.

2. Marking of Confidential Information (Clause 1)

- **Current Situation:** Clause 1 kehta hai ki jankari ko "Confidential" (Gupt) maanne ke liye us par "Confidential" ka thappa (mark) laga hona zaroori nahi hai.
- **Updation Needed:** Factory environment (brass goods manufacturing) mein workers ke liye yeh samajhna mushkil hota hai ki kaunsi drawing secret hai aur kaunsi normal. Vendor ko request karni chahiye ki jo bhi information sach mein secret hai, Company us par specifically **"CONFIDENTIAL" likh kar de**. Isse Vendor apne staff ko clearly bata payega ki kis design ko chhupa kar rakhna hai.

3. Protection of Vendor's Own IP (Clause 6)

- **Current Situation:** Clause 6 kehta hai ki Vendor ka apna purana design (pre-existing material) Company ka nahi hoga, lekin isko specifically purchase order mein likhna zaroori hoga.
- **Updation Needed:** Vendor ko is clause mein ek line add karwani chahiye ki *"Company will provide a standard format in POs to declare pre-existing IP"*. Taaki har order lete waqt Vendor apne purane brass designs ya moulds ko formally list kar sake, warna galti se unka apna banaya hua purana base design bhi Company ke naam ho jayega.

4. MSME Rights in Dispute Resolution (Clause 13)

- **Current Situation:** Clause 13 mein jhagda suljhane ke liye sirf Arbitration Act, 1996 ka zikar hai (New Delhi courts).
- **Updation Needed:** Kyunki Adhyaa Shaktii Enterprises ek registered MSME hai, Vendor ko request karni chahiye ki is clause mein **"Micro, Small and Medium Enterprises Development Act, 2006 (MSMED Act)"** ka reference add kiya jaye, jaisa main agreement mein kiya gaya tha. Isse Vendor ko payment rukne par MSME Samadhaan portal ke through fast justice milne ka hak is NDA mein bhi safe rahega.